

**ORDER SHEET**  
**IN THE LAHORE HIGH COURT**  
**MULTAN BENCH, MULTAN**  
**JUDICIAL DEPARTMENT**

**Crl. Misc. No. 6768-B of 2018**

**Maqbool, etc.**

**Vs.**

**The State etc.**

| S.No. of order/<br>proceeding | Date of order/<br>proceeding. | Order with signatures of Judge, and that of parties or counsel,<br>where necessary. |
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19.03.2019 Ch. Kabeer Ahmad Gill, Advocate with the petitioners No1, 3 & 4.  
Mr. Hassan Mahmood Khan Tareen, Deputy Prosecutor General with Shahzad S.I.  
Ch. Shakir Ali, Advocate for the complainant.

The petitioners No.1, 3 and 4 namely Maqbool, Ashiq and Mohsin Ali, respectively, are seeking their pre-arrest bail in case FIR No.472 of 2018 dated 19.09.2018, registered at Police Station Saddar Burewala, District Vehari in respect of offences under sections 302, 452, 354, 337-F(i), 337-L(ii), 148/149, PPC.

2. The allegation as against the petitioners in the FIR is that petitioner No.1 namely Maqbool son of Talib Hussain gave a “sota” blow on the head of the injured witness Haider and that petitioner No.3 namely Ashiq son of Muhammad Aslam gave a “sota” blow on the right arm of Nousher (deceased) and petitioner No.4 namely Mohsin Ali son of Zafar Iqbal gave a blow to the Nousher (deceased), who fell down because of the same.

3. I have heard the arguments on behalf of learned counsels for both the parties and perused the

record.

4. Initially, the FIR was registered under Sections 354, 452, 337-F(i), 337-L(ii), 148/149 PPC, however, subsequently, offence under Section 302 PPC was added due to the demise of the injured Nousher. The Postmortem Examination of the deceased Nousher was conducted on 26.09.2018 and the Medical Officer only observed one injury on the person of Nousher (deceased) which was a lacerated wound on top of the head 5 cm x 2 cm and no other injury was observed on the person of the deceased Nousher at the time of Postmortem Examination except for surgical wounds. Hence, the allegations as levelled against the petitioners No.3 & 4 namely Ashiq and Mohsin Ali, respectively, are not borne out from the medical evidence as is available on the record. Furthermore, while getting recorded her statement under Section 161 Cr.P.C a witness namely Mst. Waziran Bibi did not attribute any role to the petitioner No.4 namely Mohsin Ali of causing any injury to the deceased Nousher. The contention of the learned counsel in the circumstances cannot be rejected that the involvement of the petitioners in this case is without malafide and malicious intent. Mohsin Ali, petitioner No.4, is the real brother of Muhammad Ahsan Iqbal, the main accused, who has been attributed the role of causing blow on the head of deceased Nousher from the wrong side of hatchet which proved fatal in the case. There is litigation pending between the parties prior to the occurrence and it cannot be ruled out that the net was extended

to include all the male members of the accused party in this case. Almost 15 persons were involved in the occurrence and all of them are related inter-se. The petitioner No.1 Maqbool was attributed the role of causing a “*sota*” blow on the head of injured witness Haider which injury was declared as falling within the definition of Shajja-i-Khafifah ( 337-A(i)) PPC which is a bailable offence as per the Schedule II of the Code of Criminal Procedure, 1898. The common object and formation of unlawful assembly shall be finally determined by the learned trial Court. The investigation of this case is completed and the Investigating Officer has already verified the stance of the petitioners as well as the complainant. Learned counsel for the complainant has vehemently argued that recovery of weapon of offence is to be effected from the petitioners and hence they do not deserve to be granted extraordinary relief of pre-arrest bail. It is trite that for the purpose of recovery, the arrest of the petitioners/accused is not necessary as this purpose can be effected by obtaining search warrant by the Investigating Officer. At this stage, I am of the view that if the petitioners are sent behind the bars, it will cause irreparable loss to their reputation.

5. For the reasons recorded above, this petition is **allowed** and ad-interim pre-arrest bail already granted to the petitioners No.1, 3 & 4 by this Court vide order dated 15.11.2018, is hereby confirmed subject to furnishing of fresh bail bonds in the sum of Rs.1,000,000/- ( Rs. One million only)

each with two sureties each in the like amount to the satisfaction of learned trial Court.

6. Needless to mention that observations made in the above order are tentative in nature and shall not influence the trial Court, in any manner.

**(SADIQ MAHMUD KHURRAM)**  
**JUDGE**

***Approved for reporting.***

**JUDGE**

*I.R.Karimee/\**